

		exchange for transferring the right to receive this payment, Payee would receive a present, lump sum payment of \$72,000, which represents 47.9 percent of the payment's present value and equates to an equivalent interest rate of 8.5 percent if Payee were to take a loan. Insurance Code section 10139.5, subdivision (b), requires the court to consider a variety of circumstances, including Payee's financial and economic situation, to determine whether the transfer is fair and reasonable, and in the best interest of Payee. Petitioner and Payee, however, have failed to provide sufficient information for the court to make such a determination. Payee does not state his age (as required by Ins. Code §10139.5, subd. (c)(1)), whether he owns an interest in the home located at 122 E Avenida Cornelio, San Clemente, CA 92672, whether anyone else owns or lives with him at the residence, whether there is a mortgage and who pays for the mortgage, whether Payee has any source of income or financial resources other than his employment with CAL FIRE, and Payee's monthly expenses. Such information is necessary to determine Payee's financial and economic situation. The court needs more information about Payee's financial circumstances and a greater explanation about how this proposed transaction is fair, reasonable, and in Payee's best interest before this transaction can be approved, if at all. Indeed, although the payment to be transferred is 20 years in the future, it is not a life contingency payment and Payee is not even receiving 50 percent of the present value. Accordingly, Petitioner and Payee are ordered to file additional declaration(s) and any other documents needed to provide the court with the foregoing information about Payee's financial condition and to demonstrate the transaction is fair and reasonable and in Payee's best interest. All filings are ordered to be filed and served at least 20 days before the continued hearing date. Based on the foregoing, the petition is CONTINUED as set forth above. Petitioner's counsel is ordered to give notice.
7	Gouvis Engineering Consulting Group, Inc. vs. Deihimi 2016-00892751	<u>Please see notice above regarding oral argument on this motion/petition</u> Before the court is the "Third Party Claim (CCP 720.110, 720.130, 720.230)" filed by "Amir Deihimi, president of Core Structure, Inc., as Trustee" and the notice of hearing and opposition to the third party claim filed by plaintiff and

		judgment creditor Gouvis Engineering Consulting Group, Inc. (Creditor). Initially, the court notes Amir Deihimi (Deihimi) and Core Structure, Inc. (Core) are defendants and judgment debtors on the judgment entered in this action. The third party claim procedures may not be utilized by parties to the action. (Ahart, Cal. Prac. Guide: Enf. J. & Debts (The Rutter Group 2025) at ¶ 16:1605 citing <i>Commercial & Farmers Nat'l Bank v. Hetrick</i> (1976) 64 Cal.App.3d 158, 134.) In an effort to avoid this rule, Deihimi and Core assert the third party claim as a "Trustee." They contend the funds in the levied accounts are Core's employees' payroll funds and related withholdings, and they therefore are asserting the claim on behalf of their employees, who are third parties. Specifically, they claim \$14,427 of the levied funds constitute tax/payroll withholdings from Core's employers and \$58,418 constitutes wages earned by Core's employees on the date of levy. The authorities Deihimi and Core cite in support of their argument, however, fail to establish Core holds the funds at issue as a trustee for its employees. Moreover, assuming Core could be deemed to be a trustee of these funds with standing to bring this third party claim, Deihimi and Core have failed to present any evidence to establish any of the facts necessary to support this argument. At the hearing, Deihimi and Core bear the burden of proof to present admissible evidence establishing every factual predicate necessary to support their argument. (Ahart, Cal. Prac. Guide Enf. J. & Debts (The Rutter Group, June 2025 Update) ¶ 6:1687.1, citing Code Civ. Proc., § 720.360; <i>Dickson v. Mann</i> (2024) 103 Cal.App.5th 935, 945; <i>Oxford Street Properties, LLC v. Rehabilitation Assocs., LLC</i> (2012) 206 Cal.App.4th 296, 307; <i>Whitehouse v. Six Corp.</i> (1995) 40 Cal.App.4th 527, 533.) Moreover, Deihimi and Core will need to present further authorities to convince the court their trustee argument is a viable one because the authorities they presented in the claim did not do so. Based on the foregoing, the tentative ruling is to DENY the third party claim. Creditor's counsel will be ordered to give notice of this ruling if the parties submit.
8.	Richey vs. Roberts	OFF CALENDAR pursuant to the June 4, 2026 minute order.

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9.	Gamo vs. J Star Auto Group, Inc. 2017-00942930	<u>Please see notice above regarding oral argument on this motion/petition</u> Before the court is the motion by defendants J Star Auto Group, Inc. (JStar) and Jared Merrell (collectively, Defendants) for an award of attorney fees following the remittitur issued by the Court of Appeal on October 17, 2025. For the reasons set forth herein, the motion is DENIED. On December 15, 2022, the court entered judgment in favor of Defendants and against plaintiff Tirso Gamo (Plaintiff) on all causes of action. During this litigation, Defendants were jointly represented by Vivoli Saccuzzo, LLP. Plaintiff filed the case on September 11, 2017. On July 20, 2018, JStar served requests for admissions, set one, on Plaintiff, which included request nos. 1-54. Plaintiff served responses on August 27, 2018. On January 18, 2019, JStar served requests for admissions, set two, on Plaintiff, which included request nos. 55-71. Plaintiff served responses on to those requests on October 10, 2019. Plaintiff denied some of these various requests for admissions (and also withdrew some admissions that were initially made). Following trial, Defendants filed this motion seeking to recover cost of proof fees and expenses under Code of Civil Procedure section 2033.420, and also prevailing defendant attorney fees and costs under the Consumer Legal Remedies Act (CLRA). Defendants argued Plaintiff's CLRA claim were inextricably intertwined with his other claims such that there was no need to allocate Defendants' fees and expenses as between Plaintiff's CLRA claims and his other claim, or between fees recoverable for cost of proof and fees recoverable under the CLRA. As originally filed, Defendants sought \$321,728 in fees plus a multiplier of 1.5 for a total fee award of \$482,592. The trial court denied the motion in its entirety, finding the unilateral fee provision applicable to Plaintiff's financial elder abuse claim barred Defendants from recovering their fees under any other statutory provision. Defendants appealed. The Court of Appeal reversed in part and affirmed in part, finding the unilateral fee provision applicable to Plaintiff's financial elder abuse claim barred Defendants' attorney fees request under the CLRA, but that unilateral provision did not bar Defendants from recovering cost of proof expenses and fees if they made all necessary showings. Because the trial court did not otherwise address the merits of